

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CHRISTOPHER DOSSOUS,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SCHULMAN (Tax Registry No. 955464), and P.O. JOHN DOE,
a Police Officer as yet unidentified,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates
Kings County as the
place of trial

Basis of venue is

Locus of Occurrence

SUMMONSPlaintiff resides at
3900 Kings Highway
Apt 2G.
Brooklyn, NY 11234**TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendant's AddressTHE CITY OF NEW YORK
100 Church Street
New York, New York 10007**Plaintiff's attorneys:**LAW OFFICE OF PAMELA S. ROTH, ESQ. P.C.
2747 Coney Island Avenue
Brooklyn, New York 11235
Telephone: (888) 466-4884THE NEW YORK CITY POLICE
DEPARTMENT
100 Church Street
New York, New York 10007POLICE OFFICER SCHULMAN, Tax Registry No. 955464
70th Police Command
154 Lawrence Avenue
Brooklyn, New York 11230Dated: Brooklyn, New York
February 1, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS_____
CHRISTOPHER DOSSOUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SCHULMAN (Tax Registry No. 955464), and P.O. JOHN DOE,
a Police Officer as yet unidentified,Defendants,

Index No.:

VERIFIED COMPLAINT

Plaintiff, by his attorneys, LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.,
complaining of the defendants herein, upon information and belief, respectfully shows to this
Court, and alleges as follows:

INTRODUCTORY STATEMENT

1. The plaintiff, CHRISTOPHER DOSSOUS, brings this action under 42 U.S.C. Sec. 1983 and related state laws seeking compensatory and punitive damages and attorney's fees under 42 U.S.C. Sec. 1988 for the defendants' violation of his rights afforded by the United States and New York Constitutions and under the laws of the State of New York.

JURISDICTION

2. The Court has jurisdiction over plaintiff's claims under 42 U.S.C. Sec. 1983 pursuant to 28 U.S.C. Sec. 1331 and Sec. 1342(3).

3. The Court has supplemental jurisdiction over plaintiff's state law claims pursuant to 28 U.S.C. Sec. 1367.

4. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SCHULMAN (Tax Registry No. 955464) assigned to the 70th Police Command and P.O. JOHN DOE, a Police Officer as yet unidentified and assigned to the 70th Police Command, being employees of the New York City Police Department, respectively, violated plaintiff's civil rights without just and probable cause, causing him emotional and economic loss.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR ASSAULT AND BATTERY ON BEHALF OF CHRISTOPHER DOSSOUS**

5. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Queens, City and State of New York.

6. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

7. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT, and as such is responsible for the practices, policies and customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.

8. That prior hereto on May 1, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time, when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter THE CITY OF NEW YORK refused or neglected for more than (30) days

and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

9. The plaintiff has complied with all of the conditions precedent to the bringing of this action and in particular has, on or about May 1, 2016 and within ninety (90) days after the cause of action had accrued duly served the defendants with his Notice of Claim.

10. That the defendant, THE CITY OF NEW YORK, held a hearing under the General Municipal Law 50-h hearing.

11. That more than thirty (30) days have elapsed since the presentation of said Notices of Claims and said claims remain unadjusted and the defendants have wholly failed, neglected and refused to make any adjustment of the same.

12. That on February 1, 2016 and continuing through February 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER SCHULMAN (Tax Registry No. 955464) assigned to the 70th Police Command and P.O. JOHN DOE, a Police Officer as yet unidentified and assigned to the 70th Police Command, as agents, servants and/or employees.

13. That on February 1, 2016, at approximately 23:25 PM and at all times hereinafter mentioned and upon information and belief, the plaintiff, CHRISTOPHER DOSSOUS, was rightfully, lawfully and peacefully operating his silver Suburban van with three passengers inside the vehicle at the intersection of Flatbush Avenue and Nostrand Avenue, in the County of Kings, City and State of New York, when POLICE OFFICER SCHULMAN and P.O. JOHN DOE, pulled plaintiff over in a marked patrol car without turret lights or sirens at a red traffic light.

14. Plaintiff complied and produced the requested documents of drivers license and registration.

15. Defendants POLICE OFFICER SCHULMAN and P.O. JOHN DOE, handcuffed and arrested Plaintiff, without probable cause and/or a warrant.

16. Plaintiff was not informed why he was arrested and was transported to the 70th Police Command.

17. Defendant P.O. SCHULMAN ordered plaintiff to remove the strings from his sweatshirt and sweatpants and Plaintiff did not do that as he was not informed of the criminal charges against him.

18. Defendant P.O. SCHULMAN then forced plaintiff to remove ll his clothing nd strip don to only his boxer shorts, undershirt and socks to sit in a holding cell while the JOHN DOE police officers determined whether Plaintiff had an active warrant.

19. Defendants P.O. SCHULMAN and P.O. JOHN DOE kept plaintiff in his underwear for approximately two and a half (2 ½) hours in a holding cell without his clothes.

20. Defendants P.O. SCHULMAN and P.O. JOHN DOE then issued Plaintiff three summonses and charged him with violating Administrative Code Section 19-506(D) Unlicensed TLC Operator, violating Administrative Code Section 19-507(A)4, and NYSTL Section 145(6) Pickup at Bus Stop. The summonses were written while Plaintiff was in the holding cell and only because he was operating a "dollar van".

21. Plaintiff was in custody, unlawfully detained and falsely imprisoned for approximately 2 and ½ hours and was never read his Miranda rights.

22. Plaintiff was released from the 70th precinct on February 2, 2016.

23. Plaintiff was ordered to appear in Criminal Court on March 31, 2016 at NYC

Criminal Court at 346 Broadway, New York, New York.

24. The entire case was eventually totally dismissed.

25. That on February 2, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

26. That on February 2, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, Defendants P.O. SCHULMAN and P.O. JOHN DOE, who committed the aforementioned assault and battery upon the plaintiff, CHRISTOPHER DOSSOUS, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

27. That on February 2, 2016, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

28. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured, and said injuries necessitated medical intervention and treatment.

29. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF CHRISTOPHER DOSSOUS**

30. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "29" inclusive with the same force and effect as if more fully set forth at length herein.

31. The defendants herein, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, including but not limited to Defendants P.O. SCHULMAN and P.O. JOHN DOE , were negligent, reckless and careless in assaulting, battering and in violating the civil rights of the plaintiff, CHRISTOPHER DOSSOUS.

32. As a result of said negligence, the plaintiff, CHRISTOPHER DOSSOUS, became sick, sore, lame and disable, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

33. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding jurisdictional limits of all the lower Courts.

34. That by reason of the foregoing, the plaintiff was caused to be falsely arrested and illegally deprived of his liberty and civil rights; was caused to suffer imprisonment and confinement; was caused to be assaulted and battered by the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, thereby sustaining conscious pain and suffering, severe, serious and permanent personal injuries; was obliged to undergo medical care and treatment; was incapacitated from his usual vocation; suffered great shock to his nervous system; incurred medical expenses; incurred legal expenses; and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING
AND NEGLIGENT RETENTION ON BEHALF OF CHRISTOPHER DOSSOUS**

35. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

36. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants or employees acted negligently, carelessly and recklessly in hiring and/or retaining the individually named defendants in that said individual defendants were or should have been known to be employees who abused and misused their position, who gave false information, or who acted intentionally and/or recklessly toward the public.

37. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants or employees and were negligent in the hiring, training and retention of the defendants, Defendants P.O. SCHULMAN and P.O. JOHN DOE, who assaulted, battered and violated the civil rights of the plaintiff, CHRISTOPHER DOSSOUS.

38. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, Defendants P.O. SCHULMAN and P.O. JOHN DOE, and continued to employ them and allowed them to be in contact with the public at large.

39. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF CHRISTOPHER DOSSOUS**

40. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "39" inclusive with the same force and effect as if more fully set forth at length herein.

41. That on February 1, 2016, and at all time hereinafter mentioned and upon information and belief the defendants, Defendants P.O. SCHULMAN and P.O. JOHN DOE, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, CHRISTOPHER DOSSOUS.

42. That on February 1, 2016, and at all time hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

43. At no time did plaintiff commit any act or offense for which an arrest may be lawfully made, nor was plaintiff apprised of the criminal charges for which he was handcuffed, arrested and detained for more than 2 ½ hours.

44. The false criminal charges, false arrest and wrongful imprisonment were without any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

45. That as a result of the aforesaid false arrest and confinement, plaintiff, CHRISTOPHER DOSSOUS, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

46. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF CHRISTOPHER DOSSOUS**

47. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "46" inclusive with the same force and effect as if more fully set forth at length herein.

48. That on February 1, 2016 through February 2, 2016,, and at all time hereinafter mentioned and upon information and belief, the defendants, Defendants P.O. SCHULMAN and P.O. JOHN DOE, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, CHRISTOPHER DOSSOUS, inside his place of residence.

49. That defendants, Defendants P.O. SCHULMAN and P.O. JOHN DOE, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

50. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL AND
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
ON BEHALF OF CHRISTOPHER DOSSOUS**

51. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "50" inclusive with the same force and effect as if more fully set forth at length herein.

52. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Defendants P.O. SCHULMAN and

P.O. JOHN DOE, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

53. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, CHRISTOPHER DOSSOUS.

54. That as a result of said intentional and negligent acts, the plaintiff, CHRISTOPHER DOSSOUS, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

55. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLECTION OF
EMOTIONAL DISTRESS ON BEHALF OF CHRISTOPHER DOSSOUS**

56. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "55" inclusive with the same force and effect as if more fully set forth at length herein.

57. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT including but not limited to Defendants P.O. SCHULMAN and P.O. JOHN DOE, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

58. Said actions exceeded all reasonable bound of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, CHRISTOPHER DOSSOUS.

59. That as a result of said intentional and negligent acts, the plaintiff, CHRISTOPHER DOSSOUS, became sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

60. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF CHRISTOPHER DOSSOUS**

61. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "60" inclusive with the same force and effect as if more fully set forth at length herein.

62. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT including but not limited to Defendants P.O. SCHULMAN and P.O. JOHN DOE, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, CHRISTOPHER DOSSOUS, for more than 2 ½ hours, in violation of 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

63. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

64. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

65. That the deprivation by the defendants of plaintiff's civil right was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Defendants P.O. SCHULMAN and P.O. JOHN DOE, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.

66. That the defendants had deprived the plaintiff by their actions of his civil rights a guaranteed by statute.

67. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable and federal laws.

68. That the deprivation by the defendants of the plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to Defendants P.O. SCHULMAN and P.O. JOHN DOE, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK.

69. That the defendants' actions were not privileged or immune.

70. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

71. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF CHRISTOPHER DOSSOUS**

72. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "70" inclusive with the same force and effect as if more fully set forth at length herein.

73. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

74. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to Defendants P.O. SCHULMAN and P.O. JOHN DOE, herein-above alleged.

75. By reason of the foregoing, the plaintiff, CHRISTOPHER DOSSOUS, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

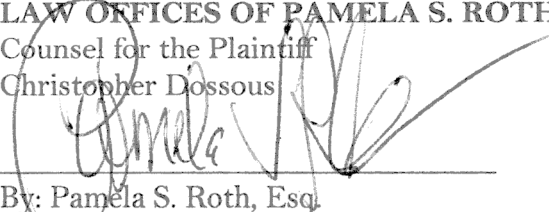
WHEREFORE, plaintiff, CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of action; plaintiff, CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of action; plaintiff, CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of action; plaintiff, CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of action; plaintiff,

CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of action; plaintiff, CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of action; plaintiff, CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of action; plaintiff, CHRISTOPHER DOSSOUS, demands judgment both for compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth Cause of action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
February 1, 2019

Respectfully submitted,

LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.
Counsel for the Plaintiff
Christopher Dossous



By: Pamela S. Roth, Esq.
2747 Coney Island Avenue
Brooklyn, New York 11235
(888) 466-4884

VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF KINGS)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

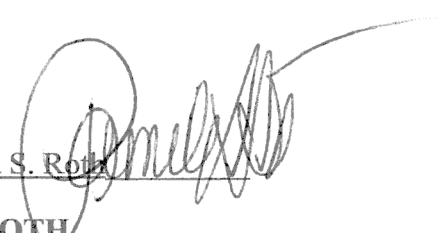
That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I have read the foregoing *Summons and Verified Complaint* and know the contents thereof; the same is true to my own knowledge except as to those matters therein alleged to be on information and belief and as to those matters, I believe them to be true.

The reason this Verification is made by me and not by Plaintiff is that the residence of Plaintiff is outside the County wherein your deponent maintains her office.

The grounds of my belief as to all matters not stated upon my own knowledge are information, books, records, data and correspondence contained in deponent's file and conversation had with the plaintiff herein.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: February 1, 2019



Pamela S. Roth

PAMELA S. ROTH

CERTIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after performing an inquiry reasonable under the circumstances, that the within ***Summons and Verified Complaint*** and its respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 130-1.1(c).

Dated: Brooklyn, New York
February 1, 2019

Pamela S. Roth

PAMELA S. ROTH



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS *Index No.*

CHRISTOPHER DOSSOUS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and POLICE OFFICER
SCHULMAN (Tax Registry No. 955464),

Defendants,

SUMMONS AND VERIFIED COMPLAINT

Attorney for Plaintiff
LAW OFFICE OF PAMELA S. ROTH, ESQ. P.C.
2747 Coney Island Avenue
Brooklyn, New York 11235
Telephone: 888-466-4884
Facsimile: 212-253-4220

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous

Dated: Brooklyn, New York
February 1, 2019

/s/ Pamela S. Roth

Signature.....
Print Signer's Name: Pamela S. Roth

Service of a copy of the within
Dated:

is hereby admitted.

.....
Attorney(s) for
